

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

ANTAL T. ANDER, *Claimant*

v.

TERRA GLOBAL LOGISTICS CORP., *Respondent*.

DOCKET NO. 2027(I)

Served: February 12, 2026

BEFORE: Erin M. WIRTH, *Small Claims Officer*.

INITIAL DECISION¹

I. INTRODUCTION

A. Summary

Claimant, Antal T. Ander, initiated this proceeding by filing an informal complaint at the Federal Maritime Commission (“FMC” or “Commission”) against Terra Global Logistics Corporation (“Terra Global” or “TGL”) alleging that Terra Global violated the Shipping Act in connection with an arrangement to transport Claimant’s household goods from the United States to Columbia. Claimant alleges that Terra Global increased its prices, charged for non-performed items and services, and failed to publish tariffs on its website or maintain a bond. Claimant seeks reparations of more than \$8,000.

Terra Global asserts that Ander agreed to all quotes presented and contends that the agreed rates were fair and competitive at the time of the transaction. Terra Global argues that the relief sought is not governed by the Shipping Act, and contends that it is in compliance with relevant requirements. Moreover, Terra Global states that the Claimant agreed to all quotes, paid all invoices without questions, and did not object until after receiving their cargo. Terra Global objects to defamatory statements and requests that the claim be dismissed.

Along with this decision, an order of reassignment is being issued, naming the undersigned as the small claims officer (“SCO”) in this proceeding. As discussed in greater detail below, Claimant does not establish a violation of the Shipping Act where Respondent delivered Claimant’s goods to their destination without undue delay or damage for less than the estimated price agreed to by the parties. Claimant’s request for reparations is therefore denied and his claims are dismissed.

¹ Pursuant to 46 C.F.R. § 502.304(g), this decision will become final unless the Commission elects to review it within 30 days of service.

B. Procedural History

On February 20, 2025, the Secretary of the Commission issued a Notice of Filing of Small Claims Complaint and Assignment (“Notice”), notifying Terra Global of the Claim and instructing it to file a response by March 16, 2025, and to indicate whether it consented to the use of the Commission’s informal procedures at Subpart S for adjudication of the Claim. Notice at 1. The Secretary also assigned this proceeding to the Chief Administrative Law Judge (“Chief ALJ”) to designate a small claims officer to adjudicate the proceeding. Notice at 2. An erratum was also issued on February 20, 2025, clarifying that Terra Global’s response was due on March 17, 2025.

On March 13, 2025, Terra Global filed its response to the claim (“Answer”) and consented to the use of the informal procedures. On March 14, 2025, the Chief Administrative Law Judge appointed a Small Claims Officer for this proceeding. Pursuant to 46 C.F.R. § 502.304(a) and (e) of the Commission’s Rules of Practice and Procedure, which authorize the SCO in a Subpart S proceeding to request, if deemed necessary, additional documents or information from the parties, on April 24, 2025, the undersigned issued a Request for Additional Documents and Information (“Request for Supplemental Information” or “RSI”). The RSI directed the parties to provide certain information and documents by May 22, 2025, and permitted any party wishing to file a response to the opposing party’s submission to do so by June 5, 2025.

Claimant responded on May 21, 2025, submitting responses to the RFI (“C. Supp. Info.”) and Terra Global responded on May 22, 2025, submitting its responses (“R. Supp. Info.”). Both parties also submitted replies to each other’s supplemental information. Claimant submitted its reply on June 4, 2025 (“C. Supp. Info. Reply”), and Terra Global submitted its reply on June 5, 2025 (“R. Supp. Info. Reply”). The record is therefore ripe for a decision.

C. Argument of the Parties

1. Claimant’s Arguments

In August 2024, Ander and his wife, Everlide Esther Batista Fuentes (collectively referred to as “Ander”), contacted Terra Global to arrange for the transportation of their household goods from the United States to Columbia. Terra Global provided a door-to-port quote to Ander, which Ander accepted. The quote was subsequently revised on two occasions, with the final quote, dated September 14, 2024, being for door-to-door service. Ander accepted this third and final quote, signed a Payment Terms Agreement, and then provided the goods for shipment to Terra Global. Ander paid Terra Global the total amount invoiced, and the container arrived in Columbia in late 2024.

Claimant argues that he and his wife made clear in initial communications that they wanted a door-to-door quote and did not realize that the first and second quotes were actually for door-to-port services. Claimant contends that the second and third quotes were significantly higher than the first, which increases were not explained or justified; that he had no choice but to accept the third quote due to his own time constraints; and that he was charged for services that were not performed or overcharged for a number of invoiced items.

In his claim, Ander notes that he engaged Terra Global to transport household goods door-to-door from Colorado, United States, to Columbia. He then lists the following complaints:

- (1) multiple quotes given to me, with consecutively increasing prices
- (2) charged me for nonperformed items/services
- (3) tariffs not published on respondent's website
- (4) increased prices were not explained or justified (lack of price transparency)
- (5) significantly overcharged for services
- (6) I spent significant time and effort due to very poor communication and errors
- (7) incurred additional expenses due to delayed delivery of container
- (8) spent significant time to decipher the sloppy quoting and invoicing discrepancies

Claim § III, pg. 2 (emphasis omitted).

In his claim, Ander points to differences between the first, second, and third quotes he received from Terra Global as alleged evidence of overcharges. He asserts:

We agreed to do the business with TGL after receiving a quote (dated 28 August 2024). Without researching specific customary rates, we felt that the first quote was reasonable and have accepted it by signing and emailing back the requested documents (Payment terms and Shipping Instructions) on 1 Sept. 2024. I have failed to realize that the quote did not include Colombian port to Colombian destination delivery as we have requested.

A second, updated, quote (dated 1 Sept. 2024) now included cargo insurance. We felt the added insurance quote was an honest omission from the first quote, so we went along with it. However, this second quote also had significantly changed prices from the first one.

These first two quotes did not include destination-port to destination-residence charges, despite the fact that I have requested door-to-door delivery in our initial phone conversation. It is entirely my fault that I did not catch that on time due to our hectic move schedule.

Claim III, pg. 3 (emphases and citations omitted).

Claimant asserts that in the third quote, “the actual door-to-door quote was emailed to me only on 14 Sep 2024, 4 days before the scheduled container loading (18 Sep 2024) and our travel arrangements. I no longer had any options to shop around for an alternative, nor to extend my rental (ended on 1 Oct 2024).” C. Supp. Info. no. 5 at pg. 26. Claimant acknowledges he did not attempt to cancel the arrangement with Terra Global “as we had no alternatives due to time constraint.” C. Supp. Info no. 5 at pg. 27.

Claimant accepted the third quote of \$16,110.60 and was invoiced \$16,160.60. Claimant contends that he was overcharged, or charged for fictitious services, with respect to a large number of invoice items. He therefore requests reparations on the following alleged bases:

- \$2,465 – ocean freight – overcharge
- \$250 – ocean freight forwarding fee – overcharge
- \$125 – cargo insurance premium – overcharge
- \$300 – waiting fee (truck) – overcharge
- \$125 – VGM – charge for non-performed service
- \$50 – wire transfer fee – never quoted
- \$200 – ocean freight – 2nd overcharge
- \$880 – drayage Columbia – overcharge
- \$2,000 – international customs clearance – overcharge
- \$4,760 – THC Barranquilla – overcharge
- \$85 – admin fee (2nd charge) – duplicate
- \$350 – pre-pull container – not justified not performed
- \$189.05 – THC Houston – overcharge
- \$403.80 – port inspection charges due TGL’s negligence

C. Supp. Info. no. 10 at pg. 29.

Claimant acknowledges that he was refunded \$1,985 by Terra Global on January 30, 2025. He therefore seeks a refund of all of the above-listed amounts, minus the \$1,985 refund. *Id.* In his final reply, Claimant additionally requests as reparations reimbursement of the \$176 FMC filing fee and \$600 for his “time spent resolving this issue.” C. Supp. Info. Reply at pg. 22.

In addition, Claimant alleges that Terra Global’s tariffs were not published on the company’s website and that it had an invalid or expired bond. Claim, § III, pgs. 3, 5-7; C. Supp. Info Reply at pgs. 14-15.

2. Respondent Terra Global’s Arguments

Terra Global generally denies Claimant’s allegations, first noting that this claim was filed by Antal T. Ander, but that he is not the shipper of record nor the party that engaged the services of Terra Global, therefore this complaint should be dismissed. Answer at pg. 1, n.1.

Nonetheless, Terra Global acknowledges that its quotes provided for this shipment included increasing prices, but notes that only the third quote was for door-to-door services. Answer at pg. 2; R. Supp. Info. at pgs. 7-9. Terra Global further asserts that Ander agreed to all quotes presented, and that all invoices were paid without question or discrepancy. Answer at pg. 4. Terra Global contends as well: “we believe the agreed rates were fair and competitive at the time of the transaction.” R. Supp. Info. at pg. 2. Specifically addressing the increases in the freight forwarding fee for the third quote, Terra Global explains:

The Freight Forwarding Fees constitute the principal charge for TGL’s services. These services encompass a comprehensive range of activities, including but not limited to the coordination of the entire shipping process, from securing cargo space to managing all necessary documentation. It is important to highlight that, in addition to the numerous email exchanges, significant time was dedicated to telephone and video calls with the Claimant to address any inquiries and clarify any discrepancies.

R. Supp. Info. at pgs. 8-9. Terra Global further contends that there were no non-performed services and that the VGM fee, based on the container's weight, was explained to Claimant numerous times. R. Supp. Info. Reply at pgs. 9-10.

Terra Global contends that "Claimant always had a choice, and he made the choice to proceed with TGL, paid his invoices timely and thanked TGL for the 'successful completion of this project'." R. Supp. Info. Reply at pg. 7. Concerning the specific charges contested, Terra Global asserts that, with one exception, its charges are well supported. Answer at pgs. 5-6; R. Supp. Info. at pgs. 1-12; *see also* R. Supp. Info. Reply at pgs. 5-29. The one exception is cargo insurance, for which Claimant was charged \$250. Terra Global asserted in its Answer that Claimant "agreed to and accepted the quote and paid the invoice charge of \$250.00 (2.5% x 5,000.00 = \$250.00) for cargo insurance." Answer at pg. 7. Claimant afterwards pointed out, however, that 2.5% x 5,000 is \$125. C. Supp. Info. at pg. 7. Terra Global states in response:

Despite this incorrect calculation being recorded multiple times, it has only now come to our attention that the amount was inaccurate. Claimant himself did not even realize the incorrect amount was recorded until TGL provided the calculation on their Response to Request for Additional Information. TGL fully agrees that a \$125 refund is due based on the correct calculation.

R. Supp. Info. Reply at pgs. 8-9. Terra Global "requests waiver of this amount as time spent for responding to this defaming and frivolous complaint." R. Supp. Info. Reply at pg. 29.

Terra Global highlights as well that, when Claimant brought to its attention that he had made certain direct payments to the port of Baranquilla, Terra Global processed a refund to Claimant for \$1,985.00. R. Supp. Info. at pg. 3. Terra Global summarizes that "Claimant's perspective appears to stem from a comparison of our pricing to random providers found online, rather than an evaluation of the agreed-upon terms that were established prior to service delivery. . . . Claimant's change in opinion post-transaction does not take into account the binding agreements made, or the level of service rendered." R. Supp. Info. at pgs. 2-3.

Finally, Terra Global admits that its tariffs are not published on the company's website, but points out this is not required. Answer at pg. 4. Rather, Terra Global avers that its tariffs are published and open for inspection in an automated tariff system as required by section 40501. Answer pgs. 3-4.

II. PERTINENT FACTS ESTABLISHED BY THE RECORD ("PF")

A. The Parties

1. Claimant Andal T. Ander is an individual, located in Colorado Springs, Colorado. Claim ¶ I at pg. 1.
2. Mr. Ander arranged and paid for the shipping of household items belonging to himself and his wife, Everglide Esther Batista Fuentes ("Fuentes"). C. Supp. Info. pgs. 1, 24.

3. Terra Global Logistics Corporation is registered with the Commission as both a non-vessel-operating common carrier (“NVOCC”) and as an ocean freight forwarder (“OFF”) under Organization No. 026594. <https://www2.fmc.gov/oti/>.
4. Terra Global publishes its tariff on www.boterates.com. R. Supp. Info. no. 6; *see also* R. Supp. Info., Ex. 1; R. Supp. Info. Reply at pg. 14 (noting this website, www.boterates.com, is also listed on FMC’s OTI webpage).
5. Global Logistics Connections, Inc. (“GLC”) is a Colombian broker, hired by Terra Global to handle customs clearance and local delivery in Colombia. Claim at pg. 27; R. Supp. Info. Reply at pgs. 16-20 & Ex. 5.

B. Quotes, Services Provided, and Final Fees Paid

6. In August 2024, Ander made contact with Terra Global, after making a post on a freight forwarding channel (“r/freightforwarding”) on Reddit, asking for freight forwarder recommendations and describing his need to ship household goods from the United States to Colombia. C. Supp. Info at pgs. 1, 32; R. Supp. Info. Reply at pg. 2 (“Hello, I have been in talks with a few freight forwarders, however, their low or lack of ratings makes me nervous.”)
7. Terra Global responded on August 26, 2024, writing “Hi, my name is Lorenzo. I am a Freight Forwarder / Customs Broker. . . . I would be happy to get you a quote so you can shop around.” Lorenzo also wrote: “in the meantime, here is a link to our website: <https://www.terrafreightforwarder.com>.” C. Supp. Info. at pg. 32.
8. Terra Global sent an initial quote of \$5,095.60 to Ander, dated August 28, 2024, which was a door-to-port quote, with a port of loading in Los Angeles, and a place of delivery at Barranquilla port in Columbia. Among the line items on this quote, the second listed was “OCEAN FREIGHT FORWARDING FEE” with a value of \$125. R. Supp. Info. pg. 7 & Ex. 7.
9. Terra Global sent a second quote of \$6,580.60 to Ander, dated September 3, 2024, which was a door-to-port quote, with a port of loading in Los Angeles, and a place of delivery at Barranquilla port in Columbia. Among the line items on this quote, the second listed was “OCEAN FREIGHT FORWARDING FEE” with a value of \$375. R. Supp. Info. pg. 8 & Ex. 8.
10. Terra Global sent a third quote of \$16,110.60 to Ander, dated September 14, 2024, which was a door-to-door quote. The total quote was broken down as follows:
 - OCEAN FREIGHT – FCL: \$3,965.00
 - OCEAN FREIGHT FOWARDING FEE: \$575
 - AES/ACE EXPORT FILING: \$85
 - CARGO INSURANCE: \$250
 - CONTAINER TRUCKING – RESIDENCE: \$1,245.60
 - DRAYAGE – CONTAINER TRUCKING: \$1,870.00

- INT'L CUSTOMS CLEARANCE: \$2,250
- VERIFIED GROSS MASS (VGM): \$125.00
- ADMINISTRATION FEE: \$85.00
- TERMINAL HANDLING CHARGES: \$5,210.00
- WAITING TIME – 2 FREE HOURS: \$225.00

R. Supp. Info, Ex. 9 (also including under “Comments/Special Instructions” the notation that rates do not include “EXPORT CUSTOMS and/or DUTIES (TAXES) AT ORIGIN, IF APPLICABLE. RATES INCLUDE DELIVERY AT DESTINATION. . . . U.S. CUSTOMS CLEARANCE, BOND, ISF BOND, ORIGIN/DESTINATION IMPORT/EXPORT DUTIES & ORIGIN/DESTINATION TERMINAL HANDLING CHARGES MAY APPLY. PORT CONGESTION FEES MAY APPLY. IMPORT DUTIES ARE ADDITIONAL.”).

11. A Terra Global Payment Terms and Agreement was signed on August 29, 2024, by Everlide Esther Batista Fuentes and witnessed by Antal T Ander, which listed as the website for Terra Global “www.TerraFreightForwarder.com,” and which included among its terms:

6) Refunds are not available. Any credits will be applied to outstanding or future invoices. . . .

10) Origin and/or destination demurrage and/or storage charges is the responsibility of the client, shipper or consignee and must be paid, prior to freight release or delivery. . . .

16) Customs Export and/or Import duties will be additional, even if not quoted.

Answer, Ex. 3 at pgs. 1-2.

12. The third quote was accepted in writing by Claimant, prior to Terra Global’s acceptance of the cargo. C. Supp. Info. no. 5 at pg. 26; *see also* C. Supp. Info. at pgs. 11, 24. Terra Global then booked and confirmed cargo space through ECUWORLDWIDE (USA) INC. R Supp. Info., Ex. 11; R. Supp. Info. Reply, Ex. 3.
13. Ander did not, at any point, attempt to cancel the arrangement with Terra Global. C. Supp. Info. no. 7 at pg. 27.
14. Terra Global arranged for the container to be shipped by truck from Claimant’s resident to the port of loading. R. Supp. Info., Ex. 11.
15. Terra Global insured Claimant’s cargo for \$5,000. Answer, Ex. 1 at pg. 3.
16. Terra Global prepared an Electronic Export Information declaration, which form listed under “AUTHORIZED AGENT NAME,” Terra Global Logistics. Answer, Ex. 1.
17. A house bill of lading was issued by Terra Global, dated November 20, 2024. It lists as shipper, consignee, and notify party Everlide Esther Batista Fuentes, as forwarding agent

Terra Global Logistics, as domestic routing/export instructions/contact agent Global Logistics Connections, as exporting carrier CMA CGM, and noting as prepaid “OCEAN FREIGHT – FCL” for \$1,500 and “CARGO INSURANCE” for \$200. R. Supp. Info., Ex. 6 at pg. 2.

18. A master bill of lading was issued by CMA CGA for the relevant shipment, listing as shipper ECUWORLDWIDE (USA) INC. as consignee/notify party Global Logistics Connections, and dated November 20, 2024, with port of loading Houston, TX and port of discharge from vessel Barranquilla. R. Supp. Info., Ex. 6 at pg. 3. Terra Global does not appear on the master bill of lading. *Id.*
19. The container was successfully transported to Columbia in late 2024. Claim at pg. 12; R. Supp. Info at pg. 1.
20. Terra Global sent to Ander a September 24, 2024, invoice for \$7,519, and a second invoice, dated December 2, 2024, for \$8,640.95, together totaling \$16,160. R. Supp. Info., Ex. 11, pgs. 1-2.
21. These two final invoices included the following aggregate line items and amounts:
 - OCEAN FREIGHT – FCL: \$3,965
 - OCEAN FREIGHT FOWARDING FEE: \$575
 - AES/ACE EXPORT FILING: \$85
 - CARGO INSURANCE: \$250
 - CONTAINER TRUCKING – RESIDENCE: \$1,245.60
 - PRE-PULL CONTAINER: \$350.00
 - VERIFIED GROSS MASS (VGM): \$125.00
 - ADMINISTRATION FEE: \$170.00
 - TERMINAL HANDLING CHARGES: \$389.05
 - WAITING TIME – 2 FREE HOURS: \$450.00
 - DRAYAGE – CONTAINER TRUCKING - VALLEDUPAR: \$1,870.00
 - INT’L CUSTOMS CLEARANCE – COLOMBIA: \$2,250
 - TERMINAL HANDLING CHARGES HOUSTON/BARRANQUILLA: \$4,435.95

R. Supp. Info., Ex. 11, pgs. 1-2.

22. Ander processed two wire transfers to Terra Global, the first on September 4, 2024, for \$6,630.60 and the second on September 17, 2024, for \$9,530.00, together totaling to \$16,160.60. Claim, § IV at pg. 10; C. Supp Info. Ex. 1.i. This was \$50 more than the final quote.
23. These total amounts wired (summing to \$16,160.60) included two \$50 wire transfer fees. *See, e.g.,* C. Supp. Info. at pg. 39; R. Supp., Ex. 4 at pgs. 1-2.
24. Ander also directly paid the port of Baranquilla USD \$1,773.59. C. Supp. Info. at pg. 23. Between this and Terra Global’s payments to the port, this resulted in a credit balance of \$1,985 with the port of Baranquilla. *Id.*

25. On January 30, 2025, Terra Global sent a wire to Ander with this entire credit balance of \$1,985. C. Supp. Info at pgs. 23, 28; *see also* R. Supp. Info. Ex. 15 at pg. 4; R. Supp. Info. pg. 2 (email from Colombian broker, Global Logistics Connections, to Terra Global noting “It was a quick operation, with DIAN inspections and serial numbers completed quickly and efficiently. Costs for container delays and standby were avoided which is a feat for the time. A credit balance of USD 1,985 was generated, as the importer, Ms. Everlide, paid service invoices directly to the Port of Barranquilla for USD 1,773.59.”).
26. In aggregate then, including the wires Ander sent to Terra Global, the direct payment Ander made to the port of Baranquilla, and the wire Ander received from Terra Global, Ander paid a total of \$15,949.19. PFs 22-25; *see also* C. Supp. Info. no. 9 at pg. 28.
27. Ander therefore ultimately paid less than the final quote of \$16,110.60. Indeed, Ander paid less than the final quote, even if the final quote were to be adjusted down by \$125 (to \$15,985.6), to reflect the actual insurance cost. Specifically, Ander ultimately paid \$36.41 less than the final quote, after adjusting for the actual insurance cost. PFs 22-26.
28. Claimant included bond information from Terra Global’s NVOCC tariffs, filed June 8, 2020, which referenced Bond No. E387861, and noted as the name of the surety company that issued the bond the Great America Insurance Company (“GAIC”). C. Supp. Info. Reply at pg. 14.
29. In response to an email inquiry from Claimant regarding Terra Global’s NVOCC bond status, on May 27, 2025, Prithvi Bhaskar, Claims Director of the Bond Division at GAIG emailed Claimant, writing as follows:

Tony, Your email was forwarded to me. The bond you referenced (E387861) was cancelled in 2021; however our system shows that we will soon be bonding Terra Global again. Bonds F330956 (FF) and F330953 (NVOCC) are set to go into effect in mid-July. You may want to contact the FMC to see who is Terra’s current surety of record.

C. Supp. Info. Reply at pg. 14.

III. DISCUSSION

A. Allegations in the Claim

Claimant refers to a variety of alleged violations of the Commission’s rules. Administrative agencies can only adjudicate violations that are within their jurisdiction. Therefore, claims must allege a specific Shipping Act section that is violated. Common law, breach of contract, or general complaints cannot be addressed here. While Claimant does not always correctly identify the applicable Shipping Act sections, given that Claimant is representing himself, some leeway is provided. However, Claimant still has the burden to prove all elements of any violation. As well, Respondent must have fair notice of the factual allegations underlying the claim and the amount of the claim. *Houben v. World Moving Services*, 2010 WL 11930208, at *4 (FMC July 6, 2010).

Claimant's allegations fall into three main categories. The first claim specifically references section 40501(a)(1) and 46 C.F.R. § 520.3(a), alleging that Terra Global's "tariff [was] not published on TGL site (we could not verify if quote was customary or reasonable)." Claim § III, pg. 3; C. Supp. Info. at pgs. 5-10. Claimant also alleges in its reply that Terra Global did not have a bond as required by 46 C.F.R. § 515.21. C. Supp. Info. Reply at pgs. 14-15. This regulation is related to the Shipping Act's Ocean Transportation Intermediary ("OTI") financial responsibility requirements found at 46 U.S.C. § 40902.

Asked to clarify which sections of the Shipping Act Claimant alleges to have been violated, Claimant's supplemental responses also refer to "unfair pricing" and to "unreasonable price charges." Claimant may be referring to section 41102(c), which prohibits unreasonable practices. 46 U.S.C. § 41102(c); 46 C.F.R. § 545.4.

Claimant repeatedly states that Terra Global engaged "in any unfair or unjustly discriminatory practice in the matter of rates or charges," citing 46 C.F.R. § 531.6(c)(2). C. Supp. Info at pgs. 5-10. The C.F.R. section cited applies to NVOCC service arrangements, which Claimant does not discuss. Rather, it appears that Claimant is attempting to allege a violation of section 41104(a)(4)(A) of the Shipping Act, which states that a common carrier shall not "for service pursuant to a tariff, engage in any unfair or unjustly discriminatory practice in the matter of--(A) rates or charges."

As explained below, Terra Global is found to have been acting as a freight forwarder for these shipments and no unreasonable practices or unfair or unjustly discriminatory rates or charges are established. Therefore, section 41102(c) and section 41104(a)(4)(A) violations are not found. Moreover, the evidence does not establish a tariff or bond violation that would entitle Claimant to reparations. Accordingly, the claims are dismissed.

B. Evidence and Burden of Proof

"In all cases governed by the requirements of the Administrative Procedure Act, 5 U.S.C. 556(d), the burden of proof is on the proponent of the motion or the order." 46 C.F.R. § 502.203. A person alleging a Shipping Act violation, therefore, bears the burden of proof to demonstrate its allegations by a preponderance of the evidence. 46 C.F.R. § 502.203; 5 U.S.C. 556(d); *Maier Terminals, LLC v. Port Auth. of N.Y. & N.J.*, Docket No. 08-03, 2014 WL 9966245, at *14 (FMC Dec. 17, 2014). The term "burden of proof" is understood to mean "the burden of persuasion." *Director v. Greenwich Collieries*, 512 U.S. 267, 276 (1994). When the party with the burden of persuasion produces sufficient evidence (characterized as a prima facie case), the burden of production shifts to the other party to produce evidence rebutting that case. *In re South Carolina State Ports Auth. for Declaratory Order*, Docket No. 94-24, 27 S.R.R. 1137, 1161 (FMC Aug. 12, 1997). *Steadman v. SEC*, 450 U.S. 91, 101 (1981) ("Where a party having the burden of proceeding has come forward with a prima facie or substantial case, he will prevail unless his evidence is discredited or rebutted."). When direct evidence is unavailable, inferences may be drawn from certain facts and circumstantial evidence may be sufficient so long as the fact finder does not rely on mere speculation. *Waterman S.S. Corp v. General Foundries, Inc.*, Docket No. 93-15, 26 S.R.R. 1173, 1180 (ALJ Dec. 9, 1993) adopted in relevant part, 1994 WL 279898, 26 S.R.R. 1424 (FMC June 13, 1994). If the evidence produced by both parties is evenly balanced, the party with the burden of persuasion will not prevail. *Greenwich Collieries*, 512 U.S. at 281.

C. Analysis

1. Claimant Has Standing

Terra Global argues in its Answer that Everlide Esther Batista Fuentes is the shipper of record, while this claim was filed by Antal T. Ander, who is “not the shipper of record or the party that engaged the services of TGL.” Response at pg. 1, n. 1-2. Terra Global contends that this complaint should be dismissed on this basis. *Id.* But, a claimant need not be the shipper of record to file a complaint with the Federal Maritime Commission. Rather, the Shipping Act more generally provides that a “*person* may file with the Federal Maritime Commission a sworn complaint alleging a violation of this part.” 46 U.S.C. § 41301(a) (emphasis added). Terra Global was so advised in the Request for Additional Information. RSI pg. 2.

Furthermore, the evidence shows that Ander is a cargo owner and that he paid the charges in question, confirming his standing and ability to seek reparations. *See, e.g., J & D Services International Inc. v. Ocean Eager Container Line, Inc.*, Docket No. 1818(I), 1997 WL 339840, at *2 (SO May 7, 1997) (“What is relevant is that [claimant] clearly paid Ocean Eagle’s freight charges, and that fact is sufficient to confer standing.”), admin. final July 9, 1997; *In re Vehicle Carrier Services*, Docket No. 16-01, 2019 WL 5419475, at *15 (FMC Oct. 21, 2019) (“[C]argo owners have standing to sue only if they directly paid the carrier or OTI who allegedly violated the Shipping Act.”) (citing to *Gov’t. of Guam v. Sea-Land Service, Inc.*, Docket No. 89-26, 29 S.R.R. 894, 908-09 (ALJ Mar. 27, 2002)).

Because Claimant has standing, his claims will be assessed. Unreasonable practice allegations are addressed in section 2, followed by claims of unfair or unjustly discriminatory pricing in section 3, and tariff and bond claims in section 4.

2. A Section 41102(c) Violation is Not Established

Section 41102(c) of the Shipping Act, previously section 10(d)(1), states that a “common carrier, marine terminal operator, or ocean transportation intermediary may not fail to establish, observe, and enforce just and reasonable regulations and practices relating to or connected with receiving, handling, storing, or delivering property.” 46 U.S.C. § 41102(c). The elements of a section 41102(c) claim are that: (a) The respondent is an ocean common carrier, marine terminal operator, or ocean transportation intermediary; (b) The claimed acts or omissions of the regulated entity are occurring on a normal, customary, and continuous basis; (c) The practice or regulation relates to or is connected with receiving, handling, storing, or delivering property; (d) The practice or regulation is unjust or unreasonable; and (e) The practice or regulation is the proximate cause of the claimed loss. 46 C.F.R. § 545.4.

The first element is that Respondent was operating as a regulated entity. Here, the parties agree that Terra Global was an ocean transportation intermediary. “The term ‘ocean transportation intermediary’ means an ocean freight forwarder or a non-vessel-operating common carrier.” 46 U.S.C. § 40102(20). This distinction is explored more in the next section. For purposes of this section, this element is met.

The claim, however, does not establish the second required element, that the claimed acts or omissions of the regulated entity are occurring on a normal, customary, and continuous basis.

This claim involves only one shipment. Claimant's supplemental information included a purported Yelp review, dated November 21, 2024, by a "George F." in Miami describing problems with a transatlantic move. C. Supp. Info., Ex. "Addressing FMC 11" at pg. 7. But Terra Global asserts that George F. does not exist in Terra Global's database, that he is not a client, and that the only transatlantic move Terra Global conducted in 2024 was Claimant's. R. Supp. Info. at pg. 33. Therefore, this one Yelp review is not found to be reliable evidence and there is no other basis to find a practice. Thus, this element is not met.

Additionally, the facts do not show that Terra Global has unjust or unreasonable practices. The parties negotiated an agreement which Claimant never requested to cancel. PF 13. The cargo was successfully shipped to its final destination. PF 19. The invoiced amount was only \$50 more than the estimate. PFs 10, 20. When Terra Global realized that there had been an overpayment, Terra Global refunded the entire credit balance to Ander, with the result that Ander ultimately paid less than the final quote. PFs 24-27. Terra Global appears to have fulfilled its obligations as an OTI and the evidence does not support finding its actions unjust or unreasonable. Accordingly, this element is also not met.

As the evidence does not support two of the required elements, a violation cannot be found. It is therefore not necessary to address the other two elements.

3. A Section 41104(a) Violation is Not Established

Section 41104(a)(4), which was previously section 10(b)(6)(D), provides: "A common carrier, either alone or in conjunction with any other person, directly or indirectly, shall not-- . . . (4) for service pursuant to a tariff, engage in any unfair or unjustly discriminatory practice in the matter of--(A) rates or charges; . . ." 46 U.S.C. § 41104(a). This section applies to an entity acting as an NVOCC but not to an entity acting as a freight forwarder. *Carlstar Group LLC v. UTI*, Docket No. 17-08, 2018 WL 2356145, at *8 (ALJ May 18, 2018). Therefore, the first question is whether Terra Global acted as a freight forwarder or NVOCC for this shipment. Additionally, in a section 41104(a)(4)(A) claim, an unfair or unjustly discriminatory practice must be shown.

An "ocean freight forwarder" is a person that –

(A) in the United States, dispatches shipments from the United States via a common carrier and books or otherwise arranges space for those shipments on behalf of shippers; and

(B) processes the documentation or performs related activities incident to those shipments.

46 U.S.C. § 40102(19).

A non-vessel-operating common carrier is "a common carrier that does not operate the vessels by which the ocean transportation is provided and is a shipper in its relationship with an ocean common carrier." 46 U.S.C. § 40102(17). A "common carrier" is a person that –

- (i) holds itself out to the general public to provide transportation by water of passengers or cargo between the United States and a foreign country for compensation;
- (ii) assumes responsibility for the transportation from the port or point of receipt to the port or point of destination; and
- (iii) uses, for all or part of that transportation, a vessel operating on the high seas or the Great Lakes between a port in the United States and a port in a foreign country

46 U.S.C. § 40102(7). The term “shipper” means –

- (A) a cargo owner;
- (B) the person for whose account the ocean transportation of cargo is provided;
- (C) the person to whom delivery is to be made;
- (D) a shippers’ association; or
- (E) a non-vessel-operating common carrier that accepts responsibility for payment of all charges applicable under the tariff or service contract.

46 U.S.C. § 40102(23).

To conclude that an entity operated as an NVOCC, the entity must meet the Shipping Act’s definition of a common carrier; that is, it must (1) hold out to the general public to provide transportation by water between the United States and a foreign country for compensation; (2) assume responsibility for the transportation from the port or point of receipt to the port or point of destination; and (3) use for all or part of the transportation a vessel operating on the high seas or the Great Lakes, between a port in the United States and a port in a foreign country. 46 U.S.C. § 40102(7). While element 3 is clearly met here (PF 18), elements 1 and 2 require a more careful analysis.

In such an analysis, the Commission’s well-defined methodology for deciding common carrier status considers the totality of circumstances and their combined effect. *Worldwide Relocations, Inc. – Possible Violations of Sections 8, 10, and 19 of the Shipping Act of 1984*, Docket No. 06-01, 2012 WL 11914713, at *5 (FMC Mar. 15, 2012) (“*Worldwide*”); *see also Activities, Tariff Filing Practices and Carrier Status of Containerships, Inc.*, 9 F.M.C. 56, 65 (FMC Sept. 28, 1965). It is also necessary to examine the entity’s conduct on a particular shipment, which is a “fact intensive inquiry.” *Worldwide*, 2012 WL 11914713, at *5.

Regarding the first element, holding out, Terra Global did publish tariffs. PF 4. But this is consistent with Terra Global being licensed as both an NVOCC and an OFF. PF 3. For entities licensed as both NVOCCs and freight forwarders, the Commission has noted that: “The dual NVOCC-OFF licensed entity has within its own power the ability to insulate itself from this concern by being clear in its shipping documents as to the status and relationship of all parties to the transportation transaction.” *Worldwide*, 2012 WL 11914713, at *9.

Here, for purposes of the specific shipment at issue, Terra Global did not refer to its tariffs throughout its communications with Claimant, or on quotes, invoices, or the agreement

with Ander. PFs 6-11, 20-21. As well, Terra Global consistently presented itself as a freight forwarder. Indeed, Claimant initially placed a question on a freight forwarding channel (“r/freightforwarding”) on reddit, seeking freight forwarder recommendations, after which Terra Global introduced itself, writing “I am a Freight Forwarder.” PFs 6-7. Terra Global then offered to prepare a quote, and it provided its “www.TerraFreightForwarder.com” website to Claimant. PF 7. Similarly, in the Payment Terms and Agreement signed by Fuentes and witnessed by Claimant, Terra Global lists as its website “www.TerraFreightForwarder.com.” PF 11. The Commission has recognized that an entity’s “characterization of its services is not determinative of its status.” *EuroUSA Shipping, Inc. – Possible Violations of Section 10 of the Shipping Act of 1984*, Docket No. 06-06, 2013 WL 9808689, at *10 (FMC Sept. 10, 2013). But here, both parties consistently referred to Terra Global as a freight forwarder from the initiation of contact and throughout the shipment, contributing to an understanding of the totality of the circumstances.

Regarding the second element, assuming responsibility, Terra Global issued a house bill of lading, identifying Fuentes as the shipper, and Terra Global as the forwarding agent. PF 17. Meanwhile, the master bill of lading (“MBL”), issued by CMA CGM does *not* list Terra Global as shipper, and does not list Terra Global anywhere else on the MBL. PF 18. While the issuance of a house bill of lading argues in favor of Terra Global’s status as an NVOCC, otherwise, Terra Global’s actions overwhelmingly show its status as a freight forwarder. For example, Terra Global prepared and processed export documents, including the required “electronic export information,” and it arranged for cargo insurance (PFs 15-16), which activities are specifically listed under “Freight Forwarding services” and are not listed under NVOCC services. *Compare* 46 C.F.R. § 515.2(h) (OFF services, including “(2) Preparing and/or processing export documents, including the required ‘electronic export information’ . . . (8) Arranging for cargo insurance;”) with 46 C.F.R. § 515.2(k) (NVOCC services). Terra Global also coordinated the movement of the shipment from origin to vessel, arranging for the container to be shipped by truck from Claimant’s resident to the port of loading; booked and confirmed cargo space; and advanced freight in connection with the dispatching of the shipment—all of which are consistent with providing freight forwarding services. PFs 12, 14, 17; 46 C.F.R. § 515.2(h)(3), (11)-(12).

Further providing clarity regarding Terra Global’s role, each of Terra Global’s quotes, and its final invoicing, included an expressly labeled “freight forwarder fee.” PFs 8-10, 20-21. The Shipping Act specifically defines the term “freight forwarding fee” to mean “charges billed by an ocean freight forwarder to a shipper, consignee, seller, purchaser, or any agent thereof, for the performance of freight forwarding services.” 46 C.F.R. § 515.2(g). Of note as well, out of all the fees that Claimant disputes, Claimant does not dispute Terra Global’s charging *of* a freight forwarder fee itself, only that this fee increased. C. Supp. Info. at pgs. 4-12, 29; C. Supp. Info. Reply at pg. 22.

On balance—considering the explicit disclosure of Terra Global’s freight forwarding fee across all of its quotes, its having been contacted by Claimant in a freight forwarding channel, introducing itself as a freight forwarder, repeatedly referring Ander to its freight forwarding services website, invoicing Ander for its services based on a “freight forwarding fee,” and acting as a freight forwarder in arranging for cargo insurance, processing export documents, advancing freight in connection with the dispatching of the shipment, coordinating the movement of the shipment from origin to vessel, and booking and confirming cargo space—Terra Global is found

to be an ocean freight forwarder for purposes of this shipment. Claimant therefore cannot demonstrate a 41104(a)(4)(A) violation.

Even if Terra Global was operating as an NVOCC, in a section 41104(a)(4) claim, discrimination must be shown. While there are some cases which suggest that “unfair” could be read separately from “discriminatory practice” in interpreting “any unfair or unjustly discriminatory practice,” that reading is not consistent with other sections of the Shipping Act. *See Mills v. Crowley Logistics, Inc.*, Docket No. 1995(F), 2025 WL 848571, at *13-14 (ALJ Mar. 13, 2025) (admin. final April 15, 2025). For example, section 41104(a)(8) prohibits giving “any undue or unreasonable preference or advantage or impos[ing] any undue or unreasonable prejudice or disadvantage.” In that section, it is clear that “undue” does not stand on its own but rather describes the preference or advantage or the prejudice or disadvantage. Similarly, in 41104(a)(4), unfair describes the discrimination.

Here, there is no evidence that Ander was treated differently than other shippers. The one Yelp review is not found to be reliable and there is not information about other shipments. Moreover, Terra Global asserts that the only transatlantic move Terra Global conducted in 2024 was Claimant’s. R. Supp. Info. at pg. 33. Therefore, the evidence does not show any practice that was unfair or unjustly discriminatory. This is an alternate basis to find that Claimant has not demonstrated a 41104(a)(4)(A) violation and to dismiss the claim.

4. Violations of Sections 40501 or 40902 are Not Established

Section 40501 provides, under the heading “Automated Tariff System,” that: “Each common carrier and conference shall keep open to public inspection in an automated tariff system, tariffs showing all its rates, charges, classifications, rules, and practices between all points or ports on its own route and on any through transportation route that has been established.” 46 U.S.C. § 40501(a)(1).

Regarding its section 40501 claim, Claimant specifically alleges that Terra Global did not publish tariffs on its website. Terra Global first notes that “that there is no mandate for freight forwarders to advise shippers about the publication of NVOCC tariffs.” R. Supp. Info. Reply at pg. 14. Terra Global further asserts that what is required is that tariffs are published and open for inspection in an automated tariff system, not that tariffs are located on an entity’s website specifically; and that its tariff location url is also discernible by checking FMC’s website. Terra Global has demonstrated that its tariffs are so published, consistent with section 40501 requirements. PF 4. Claimant therefore has not carried its burden of demonstrating a 40501 violation, and this claim is dismissed.

The Claimant also alleges the failure to maintain a bond, pointing to the NVOCC bond, No. E387861, listed in Terra Global’s tariffs, and claiming this to be an invalid or expired bond. C. Supp. Info. Reply at pg. 14. Claimant further states “I am questioning if TGL has a current valid bond, or if TGL had a valid bond during my container’s voyage between 18 September and 28 December 2024” also asserting that if Terra Global “did not carry bond during my container's transport, I have been exposed to additional risk and inability to recover any damages should a loss had happened.” C. Supp. Info. Reply at pg. 14-15.

Failure to maintain a bond would be a violation of 46 U.S.C. § 40902, which states that: “A person may not advertise, hold oneself out, or act as an ocean transportation intermediary unless the person furnishes a bond, proof of insurance, or other surety-(1) in a form and amount determined by the Federal Maritime Commission to insure financial responsibility; and (2) issued by a surety company found acceptable by the Secretary of the Treasury.” 46 U.S.C. § 40902; *see also* 46 C.F.R. § 515.21 (setting bond amounts). Moreover, the “insurance must provide coverage for damages, reparations or penalties arising from any transportation-related activities under the Act of the insured ocean transportation intermediary.” 46 C.F.R. § 515.22 (noting each OTI shall establish its financial responsibility by one of the methods described “[p]rior to the date it commences furnishing ocean transportation intermediary services”).

This allegation could be dismissed on procedural grounds as it was not raised until the reply to Terra Global’s supplemental information. Terra Global did, however, have a limited opportunity to address this argument, because Claimant provided its reply one day in advance of the deadline, on June 4, 2025, while Terra Global provided its reply on June 5, 2025. In its reply, Terra Global argues that if its bond were cancelled the FMC would notify the NVOCC to update or reissue it and failure to comply would result in automatic cancellation of the NVOCC’s license. R. Supp. Info. Reply at pg. 16. It is also noted that Terra Global asserts that the only transatlantic move Terra Global conducted in 2024 was Claimant’s. R. Supp. Info. at pg. 33.

While the bond issue was not raised by Claimant either in the initial complaint, or in the initial response to the RSI, it is concerning. As the Commission has reiterated: “The spirit and basic policy that motivated Congress to enact the bonding and licensing provisions of the Shipping Acts of 1916 and 1984, the NVOCC Act, and OSRA were to provide protection to the shipping public from unqualified and potentially unscrupulous service providers.” *OC Int’l Freight, Inc.*, Docket No. 12-01, 2014 WL 5316336, at *27 n.4 (FMC July 21, 2014) (citation omitted).

The evidence shows that Terra Global did not have an NVOCC bond with GAIC, as of May 2025, but that it does now. PFs 28-29. However, this does not mean that Terra Global did not have a bond through another surety company. Here, Terra Global delivered Claimant’s goods to their destination without undue delay or damage for less than the estimated price agreed to by the parties. PFs 19, 26-27. Moreover, Claimant has not established any other violation of the Shipping Act. Thus, even if there was a lapse in the NVOCC bond, it does not appear that would have proximately caused any actual injury to Claimant that would entitle him to reparations – particularly given that Terra Global acted as a freight forwarder for Claimant’s shipment. *See, e.g., Transworld Shipping (USA), Inc. v. FMI Forwarding (San Francisco), Inc.*, Docket No. 01-02, 2001 WL 1085436, at *6 (ALJ Aug. 3, 2001) (admin final Sept 18, 2001) (monetary loss not proximately caused by failure to disclose its business organization); *see also MAVL Capital Inc. v. Marine Transport Logistics, Inc.*, Docket No. 16-16, 2022 WL 2209421, at *3 (FMC June 10, 2022) (“damages must be the proximate result of violations of the statute in question”). Accordingly, the evidence does not establish a bond violation that would entitle Claimant to reparations, and this claim is also dismissed.

IV. ORDER

Claimant does not demonstrate that Terra Global violated the Shipping Act. It is therefore:

ORDERED that Claimant's request for reparations against Terra Global be **DENIED**. It is

FURTHER ORDERED that Claimant's claims against Terra Global be **DISMISSED WITH PREJUDICE**.


Erin M. Wirth
Small Claims Officer